De Wet pronounced each of the main accused guilty on all counts. Kathy was found guilty on only one of four counts, and Rusty Bernstein was found not guilty and discharged.

“I do not propose to deal with the question of sentence today,” de Wet said. “The state and the defense will be given opportunities to make any submission they want tomorrow morning at ten o’clock.” Court was then adjourned.

We had hoped that Kathy and Mhlaba might escape conviction, but it was another sign, if one was necessary, that the state was taking a harsh line. If he could convict Mhlaba on all four counts with little evidence, could the death sentence be far behind for those of us against whom the evidence was overwhelming?

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That night, after a discussion among ourselves, Walter, Govan, and I informed counsel that whatever sentences we received, even the death sentence, we would not appeal. Our decision stunned our lawyers. Walter, Govan, and I believed an appeal would undermine the moral stance we had taken. We had from the first maintained that what we had done, we had done proudly, and for moral reasons. We were not now going to suggest otherwise in an appeal. If a death sentence was passed, we did not want to hamper the mass campaign that would surely spring up. In light of the bold and defiant line we had taken all along, an appeal would seem anticlimactic and even disillusioning. Our message was that no sacrifice was too great in the struggle for freedom.

Counsel were unhappy about our decision, and wanted to talk about an appeal. But Walter, Govan, and I wanted to discuss the mechanics of the sentencing procedure the next day. If we were sentenced to death, what would then happen? We were told that after de Wet pronounced the death sentence, he would ask me, as the first accused, “Have you any reason to advance why the sentence of death should not be passed?” I told Bram, Joel, and Vernon that in that case I would have quite a lot to say. I would tell de Wet that I was prepared to die secure in the knowledge that my death would be an inspiration to the cause for which I was giving my life. My death — our deaths — would not be in vain; if anything we might serve the